25STCV07956 25STCV07956

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-06-25

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C731%2C06%2F25%2F2026

Source SHA-256: 49edb0a6e47ba06711134ef462769c233ed6760b2c4e2c4ee98ac462beecc859

Case Number: 25STCV07956 Hearing Date: June 25, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE RULING

ANTHONY QUINTERO,

Plaintiff,

v.

GENERAL MOTORS, LLC.

Defendant.

Case No:

25STCV07956

Hearing Date: June 25, 2026

Calendar Number: 11

Defendant

General Motors, LLC moves for judgment on the pleadings as to the First Amended Complaint ("FAC") filed by Plaintiff Anthony Quintero.

Defendant's motion for judgment on the pleadings is GRANTED in part and DENIED in part. The motion is granted without leave to amend as to the first through third causes of action. The motion is granted with leave to amend as to the fourth cause of action. The motion is denied as to the fifth cause of action.

Background

This is a lemon law action. On March 18, 2025, Plaintiff Anthony Quintero ("Plaintiff") filed a complaint against Defendants General Motors, LLC ("Defendant").

On October 17, 2025, Plaintiff filed the FAC, alleging causes of action for: (1) Violation of Civil Code section 1793.2(d); (2) Violation of Civil Code section 1793.2(b); (3) Violation of Civil Code section 1793.2(a)(3); (4) Breach of the Implied Warranty of Merchantability; and (5) Fraudulent Inducement - Concealment.

Plaintiffs allege that they entered into a warranty contract with Defendant regarding a 2018 Chevrolet Colorado on July 5, 20218, and the vehicle developed engine defects, transmission defects, and electrical defects.

On

March 26, 2026, Defendant filed a motion for judgment on the pleadings. On June 11, 2026, Plaintiff filed the Opposition. On June 17, 2026, Defendant filed the Reply.

Request for Judicial Notice

Defendant

seeks judicial notice of: (1) List of all manufacturers that have elected to opt-in to Cal. Code of Civil Procedure § 871.20 et seq, as maintained on the California Department of Consumer Affairs' government website, as of November 10, 2025; and (2) Second Amended Complaint ("SAC") in Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828.

Defendant argues that

this document is a proper subject of judicial notice pursuant to Evidence Code section 452, subdivision (c), because it accurately reflects the official acts of California's executive branch. And Defendant argues that the document's contents constitute facts "not reasonable subject to dispute and … capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Id., § 452(h).)

Judicial notice may

be taken of the following matters:

a)

The decisional, constitutional, and

statutory law of any state of the United States and the resolutions and private

acts of the Congress of the United States and of the Legislature of this state.

c)

Official acts of the legislative,

executive, and judicial departments of the United States and of any state of

the United States.

d) Records of (1) any court

of this state or (2) any court of record of the United States or of any state

of the United States.

(Evidence Code

section 452.)

The request

is GRANTED.

Legal Standard

A defendant may move for judgment on the pleadings where the court has no jurisdiction

of the subject of the cause of action alleged in the complaint or the complaint does

not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc., § 438 subd. (c)(1)(B).) A non-statutory motion for judgment on the pleadings may be made any time before or during trial. (Stoops v. Abbassi (2002) 100 Cal.App.4th 644, 650.) “Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense.” (Ibid.)

“In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452; see also Stevens v. Superior Court (1999) 75 Cal.App.4th 594, 601.) “When a court evaluates a complaint, the plaintiff is entitled to reasonable inferences from the facts pled.” (Duval v. Board of Tr. (2001) 93 Cal.App.4th 902, 906.) “In deciding or reviewing a judgment on the pleadings, all properly pleaded material facts are deemed to be true, as well as all facts that may be implied or inferred from those expressly alleged.” (Fire Ins. Exch. v. Superior Court (2004) 116 Cal.App.4th 446, 452.) A motion for judgment on the pleadings normally does not lie as to a portion of a cause of action. (Ibid.) “In the case of either a demurrer or a motion for judgment on the pleadings, leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action.” (Gami v. Mullikin Medical Ctr. (1993) 18 Cal.App.4th

870, 876.)

Discussion

First through Third Causes of Action under Song

Beverly Act – Statute of Repose

Code of Civil

Procedure section 871.20 et seq. prescribes unique procedural

limitations for certain lemon law actions, effective January 1, 2025.

Section 871.21

lays out the time limitations for restitution/replacement actions:

“(a)¿An action covered by Section 871.20

shall be commenced within one year after the expiration of

the applicable express warranty.

(b)¿Notwithstanding subdivision (a), an

action covered by Section 871.20 shall not be brought later than six years

after the date of original delivery of the motor vehicle.

The FAC alleges that on July 5, 2018, Plaintiff entered

into a warranty contract with Defendant regarding the Chevrolet Colorado. (FAC,

¶ 6.) Thus, the

vehicle was delivered on July 5, 2018. As such, Plaintiff’s time to bring his

claims expired in July 2024, six years after delivery of the Vehicle in

2018. Plaintiff filed this action in March 2025, almost a year later. Defendant argues Plaintiff’s claims are barred by the statute of repose, unless they allege facts showing one or more tolling provisions are satisfied, which they have not.

Due Process

Plaintiffs argue that applying section 871.21 retroactively to defeat their accrued claims violates due process.

“In California, statutes of limitations, being procedural, are normally retroactively applied to accrued causes of action; but the court must inquire whether, in a given case, that retrospective application may violate due process by in effect eliminating the plaintiff's right. If the time left to file suit is reasonable, no such constitutional violation occurs, and the statute is applied as enacted. If no time is left, or only an unreasonably short time remains, then the statute cannot be applied at all.” (Aronson v. Superior Ct. (1987) 191 Cal.App.3d 294, 297.)

Plaintiff cites Rosefield Packing Co. v. Superior Court (1935) 4 Cal.2d 120. In Rosefield, a statute expressly made retroactive to apply to actions which had already been¿commenced. After noting that the Legislature may shorten statutes of limitations and make them applicable to pending proceedings, the court stated: “[W]here the change in remedy, as, for example, the shortening of a time limit provision, is made retroactive, there must be a reasonable time permitted for the party affected to avail himself of his remedy before the statute takes effect. If the statute¿operates¿immediately¿to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such party. [Citation.]” (Id., at 122–123.) The court held that a year was “no doubt” a reasonable¿time, and¿noted that “[m]uch¿shorter periods have been upheld. [Citations.]” (Id., at 123.)¿

¿

Here, Plaintiff was given a reasonable time. AB 1755, which enacted section 871.20 et seq., became law on September 29, 2024, but did not go into effect until January 1, 2025. Litigants were given a window of more than three months to file claims that would otherwise expire. Plaintiff was given a reasonable amount of time to bring their restitution and replacement claims but did not do so. Thus, Plaintiff’s due process rights have not been violated.

Next,

Plaintiff argues that the laws applicable to the opt in process were amended under Senate Bill No. 26, and those amendments did not become effective until July 1, 2025. Thus, Plaintiff argues that actions commenced prior to July 1, 2025, are not affected by section 821.21’s statutes of repose. Plaintiff relies entirely on the single statement of a California Senator, recorded in the California Legislative Counsel’s Digest: “This bill [SB 26] would provide that certain procedures described above would instead become operative on July 1, 2025.”

However, SB 26 amended section 871.24 to expressly state that “This section shall become operative on July 1, 2025.” No such similar language is contained in sections 871.21, 871.29, or 871.30.

Thus, Plaintiff’s assertion that these provisions therefore became effective only as of July 1, 2025 is not supported by legislative history or the plain language. Rather, section 871.21 was enacted as part of AB 1755, and it became effective on January 1, 2025.

Inadequate Literature

Plaintiff¿argues that his inadequate literature/parts claim under Civil Code¿section¿1793.2, subd.¿(a)(3)¿is¿not barred because that section is left out of¿Code of Civil Procedure sections¿871.20 and 871.21.¿¿

Code of Civil Procedure section 871.20, subdivision (a) provides, "Notwithstanding any other law, this chapter applies to an action … seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty."

Plaintiff's third cause of action falls under the scope of Code of Civil Procedure section 871.20. Civil Code section 1793.2, subdivision (a) (3) states that "Every manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall . . .¿[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." (Civ. Code § 1793.2.) Express warranties of this kind can be enforced via Civil Code section 1794. (See Civ. Code § 1794.) Civil Code section 1794 expressly falls under Code of Civil Procedure section 871.20. (Code Civ. Pro. § 871.20., subd. (a).)

Equitable Tolling

“[U]nlike a procedural statute of limitations, substantive statutes of repose are generally not subject to statutory or equitable tolling.” (PGA West Residential Assn., Inc. v. Hulven Internat., Inc. (2017) 14 Cal.App.5th 156, 178.) However, section 871.21 specifically provides “[t]he time periods prescribed in subdivisions (a) and (b) shall be tolled as follows: (1) As provided by tolling requirements prescribed in subdivision (c) of Section 1793.22 of the Civil Code, as applicable. (2) For the time the motor vehicle is out of service by reason of repair for any nonconformity. (3) For the time period after a pre-suit notice is provided to the manufacturer in accordance with Section 871.24, which time period shall not exceed 60 days.” (Code Civ. Proc., § 871.21, subd. (c).)

Plaintiff argues that, notwithstanding the three bases for tolling the statute enumerated at section 871.21, subd. (c), Plaintiff’s claims were tolled based on equitable tolling rules. Again, the Court disagrees.

Unlike some other statutes, section 871.21 does not include language that expressly excludes application of tolling doctrines. (See e.g., McDonald v. Antelope Valley Community College Dist. (2008) 45 Cal.4th 88, 105 [discussing how Code of Civil Procedure sections 340.6 and 366.2 each contain an exhaustive list of bases for tolling the statute of limitations provided].) However, even in the absence of such language, the court may treat such a list as exhaustive where application of equitable tolling cannot be reconciled with the statute's underlying policy. (See Lantzy v. Centex Homes (2003) 31 Cal.4th 363, 371.) That is the case here.

Floor analysis for section 871.21 describes the Legislature's intent to limit "[the] flurry of civil actions ... [that] are serving to delay the courts' processing of these cases", such that "California consumers are being denied justice" as a result of a "civil litigation log jam currently plaguing lemon law disputes." (California Bill Analysis, A.B. 1755 Assem., 8/26/2024) The Legislature could have applied additional tolling doctrines and opted not to. (See Gikas v. Zolin (1993) 6 Cal.4th 841, 852 ["The expression of some things in a statute necessarily means the exclusion of other things not expressed.”].)

Under these circumstances, the Court finds the tolling provisions at section 871.21 describe the sole limited occasions when the statute of repose may not be applied. Equitable doctrines are unavailable to Plaintiff.

Plaintiff has made no showing that they can plead facts that satisfy section 871.21, subd. (c) by amendment. His reliance solely on equitable doctrines in his opposition indicates he cannot plead such facts. Therefore, the Court finds that Plaintiff has not shown a likelihood of successful amendment.

The motion as to the first through third causes of action is GRANTED WITHOUT LEAVE TO AMEND.

Fourth Cause of Action for Breach of Implied Warranty or Merchantability

Defendant also moves for judgment on the pleadings as to the fourth cause of action on the grounds that the implied warranty claim is barred by the applicable four-year statute of limitations.

The statute of limitations on a claim for breach of an implied warranty of merchantability is four years.¿ (Montoya v.

Ford Motor Co.¿(2020) 46¿Cal.App.5th 493, 495.)¿ The claim “accrues when the breach occurs, regardless of the aggrieved party’s lack of knowledge of the breach.¿ A breach of warranty occurs when tender of delivery is made. . . . .”¿ (Commercial Code § 2725(2).)¿ In short, Section 2725 of the Commercial Code is clear: there is no delayed-discovery rule with respect to accrual of a claim for breach of an implied warranty.¿ (Cardinal Health 301, Inc. v. Tyco Electronics Corp.¿(2008) 169 Cal. App. 4th 116, 129, 134.)¿ If the contract expressly extends the warranty to “future performance” of the goods, then the claim accrues when the breach is discovered or should have been discovered.¿ But absent such an explicit extension, accrual occurs at the time of the breach, which is the time of delivery of the goods in question.¿ (Id. at p. 129.) ¿

Here, the FAC does not allege that the contract for the Subject Vehicle extends the implied warranty to a future performance date by Defendant.¿ Plaintiff’s claim for breach of the implied warranty of merchantability thus accrued when the Subject Vehicle was delivered to him in July 2018.¿ Plaintiff did not sue Defendant until March 2025.¿ Accordingly, Plaintiff’s claim for breach of the implied warranty related to the Subject Vehicle is time-barred on the face of the FAC.

Plaintiff contends that¿Mexia v. Rinker

Boat Co. (2009) 174¿Cal.App.4th 1297, stands for the proposition that the statute of limitations on a claim for breach of the implied warranty of merchantability of a consumer good is tolled for the duration of the period of the express warranty on the good when the good's defect is latent.¿¿ That is not so.¿ The Court in¿Mexia¿said flat out that "[i]n the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery." (Id. at 1304-1305.)

¿

Defendant's motion as to Plaintiff's claim for breach of the implied warranty of merchantability is granted with leave to amend.

Fifth Cause of Action for Fraudulent Concealment

Requisite

Specificity

Defendant argues the fraud claim fails because Plaintiff fail to plead fraud with the requisite specificity.

"'[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.' [Citation]." (Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 868.)

Plaintiff argues the exception to the heightened pleading standard for fraud claims provides that, "the requirement of specificity is relaxed when the allegations indicate that "the defendant must necessarily possess full information¿[concerning the facts of the controversy" . . . or "when the facts lie more in the knowledge of the opposite party[.]" (Tarmann v. State Farm Mut. Auto. Ins. Co.¿(1991) 2 Cal.App.4th 153, 158.) Further, the particularity requirement "pleading facts which 'show how, when, where, to whom, and by what means the representations were tendered…is intended to apply to affirmative misrepresentations." (Alfaro v. Cmty. Hous. Improvement Sys. & Plan. Assn., Inc. (2009) 171 Cal. App. 4th 1356, 1384.) "[I]t is harder to apply this rule to a case of simple nondisclosure. "How does one show 'how' and 'by what means' something didn't happen, or 'when' it never happened, or 'where' it never happened?" " (Ibid.)

Fraud must be pled with specificity. (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 43.) “California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim.” (Id.) The complaint must “include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant’s awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant’s omission. ‘Mere conclusionary allegations that the omissions were intentional and for the purpose of defrauding and deceiving plaintiff . . . are insufficient for the foregoing purposes.’” (Id. at pp. 43-44.)

In Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844 (review dismissed December 18, 2024), the court concluded that the claim for fraudulent concealment was adequately pled because, "plaintiffs alleged the CVT transmissions installed in numerous Nissan vehicles (including the one plaintiffs purchased) were defective; Nissan knew of the defects and the hazards they posed; Nissan had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information; Nissan intended to deceive plaintiffs by concealing known transmission problems; plaintiffs would not have purchased the car if they had known of the defects; and plaintiffs suffered damages in the form of money paid to purchase the car." (Id.) The court, in addressing the contention that plaintiffs did not provide specific facts about what it should have disclosed, found it sufficient that plaintiffs pled the CVT transmissions were defective in that they caused problems such as hesitation, shaking, jerking, and failure to function, and that Nissan was aware of the defects as a result of premarket testing and consumer complaints made to both the National Highway Traffic Safety Administration and to Nissan and its dealers. (Id.)

In reviewing the FAC's allegations, the Court finds that the cause of action has been adequately pled based on Dhital.

Duty

to Disclose – Transactional Relationship

Defendant also contends that Plaintiff failed to allege a transactional relationship between Defendant and Plaintiff that would give rise to a duty to disclose.

Plaintiff's fraud claim is based on an omission. As such, one of the following four circumstances must apply to establish the defendant's duty to disclose information to the plaintiff: (1) the defendant is the plaintiff’s fiduciary; (2) the defendant has exclusive knowledge of material facts not known or reasonably accessible to the plaintiff; (3) the defendant actively conceals a material fact from the plaintiff; and (4) the defendant makes partial representations that are misleading because some other material fact has not been disclosed. (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336; see also Heliotis v. Schuman (1986) 181 Cal.App.3d 646, 651.) These circumstances presuppose a transactional relationship. (LiMandri, supra, 52 Cal.App.4th at 337.)

A transaction giving rise to a duty to disclose that would support a claim for intentional concealment must necessarily arise from direct dealings between the plaintiff and defendant; it cannot arise between the defendant and the public at large. (Bigler-Engler v. Breg, Inc., (2017) 7 Cal. App. 5th 276, 312). As a matter of common sense, such a relationship can only come into being because of some sort of¿transaction¿between the parties. (LiMandri, supra, 52 Cal.App.4th at 337.) A duty to disclose may arise from the relationship between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. (Los Angeles Memorial Coliseum Com. v. Insomniac, Inc. (2015) 233 Cal.App.4th 803, 831.)

Here, Defendant argues that because Plaintiffs do not allege that Plaintiff purchased the subject vehicle from Defendant, there is no direct dealing. However, the FAC alleges a direct contractual relationship between Plaintiff and Defendant via the warranty contract regarding the subject vehicle. (FAC, ¶ 6.) Therefore, the Court finds that Plaintiff has sufficiently alleged a direct dealing with Defendant regarding the Subject Vehicle and a duty to disclose. (See Rattagan v. Uber Techs (2024) Inc., 17 Cal. 5th 1, 41 [“it is not surprising that most fraudulent concealment allegations stem from precontractual negotiations (as demonstrated by three of the four LiMandri examples: “between seller and buyer, employer and prospective employee, ... or parties entering into any kind of contractual agreement”.]).] "All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances." (LiMandri v. Judkins (1997) 52 Cal. App. 4th 326, 337.)

The motion is denied as to this cause of action.